

23NWCV00990 23NWCV00990

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Case Number: 23NWCV00990 Hearing Date: September 21, 2026 Dept: D

ELIDA CARDOZA, ET AL. V.

CITY OF COMPTON, ET AL.

CASE NO.: 23NWCV00990

HEARING: 09/21/2026 @ 9:30 a.m.

#21

Defendant/Cross-Complainant's

MOTION TO BIFURCATE

Having considered the briefs

filed by the parties and the arguments of counsel made at the hearing, the

Court rules as follows:

Defendant City of Compton's motion

for bifurcation is DENIED.

Moving party to give notice.

Defendant City of Compton (the

"City") moves to bifurcate the issues of liability and damages.

Background

On March 30, 2023, Plaintiffs

filed the operative Complaint against the City, David Blake Jr. (Blake), and

Does 1 through 50 (collectively, Defendants), asserting four causes of action: (1) Negligence (Wrongful Death); (2) Battery (Wrongful Death); (3) Negligent Infliction of Emotional Distress; and (4) Violation of the Bane Act (Civil Code section 52.1.)

Plaintiffs allege that Blake unlawfully and without provocation shot and killed Julio Moises Cardoza (Decedent) in front of his family after accompanying Councilmember Isaac Galvan (Galvan) to the family's home. Plaintiffs claim the City negligently hired, trained, and supervised Blake, who was armed and acting within the scope of his employment at the time, making the City vicariously liable. Plaintiffs further allege emotional distress and civil rights violations arising from witnessing the shooting.

Legal Standard

Code of Civil Procedure section 1048, subdivision (b), provides: "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States."

Code of Civil Procedure section 598 permits the Court, "when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing," to order "that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case." (Code Civ. Proc., § 598.) Evidence Code section 320 provides: "Except as otherwise provided by law, the court in its discretion shall regulate the order of proof." Section 1048, subdivision (b), and Evidence Code section 320 together give a trial court broad discretion over the order in which issues are tried. (*Grappo v. Coventry Financial Corp.* (1991) 235 Cal.App.3d 496, 504 (*Grappo*) An order granting or refusing separate trials is disturbed only for a manifest abuse of that discretion. (*Finley v. Superior Court* (2000) 80 Cal.App.4th 1152, 1163 (*Finley*).)

Analysis

Defendant argues that whether Defendant

Compton is liable for the intentional criminal act of shooting and killing the decedent is a distinct legal and factual inquiry wholly separate from the extent of Plaintiffs' damages. Bifurcation is appropriate because the issue of liability will be expeditious and economic. It will involve fewer witnesses, whereas the issue of damages will necessitate the expenditure of much more money, time, and resources. This amount of evidence pertaining to the nature and extent of the medical care and treatment provided to Plaintiffs as well as the emotional toll of Julio Cardoza's death will be unnecessary should the liability phase of the trial be found in Defendant's favor.

In opposition, Plaintiff argues

that rather than promoting efficiency, bifurcation would cause unnecessary delay, burden witnesses, and waste judicial resources. Given the substantial overlap between liability and damages evidence, a single trial is the most efficient and just course. Under Code of Civil Procedure §§ 598 and 1048(b), bifurcation is discretionary and must serve judicial economy, witness convenience, or the interests of justice. Courts routinely deny bifurcation where: separately. (See *Downey Sav. & Loan Assn. v. Ohio Cas. Ins. Co.* (1987) 189 Cal.App.3d 1072, 1086; *Grappo v. Coventry Fin. Corp.* (1991) 235 Cal.App.3d 396, 504.) Bifurcation would lengthen trial proceedings, require redundant testimony, and impose unnecessary burdens on witnesses, the Court, and the parties. Bifurcation would require multiple witnesses, including children, parents, and experts, to testify twice, disrupting their lives and significantly extending the length of trial. It would necessitate: Defendant has failed to demonstrate how bifurcation would serve judicial economy. Courts recognize that evidence relevant to liability often overlaps with damages. (*Krouse v. Graham* (1977) 19 Cal.3d 59, 78-79.) Bifurcation in this case would result in a duplicative and inefficient trial. The parties have identified a total of 21 witnesses: 17 witnesses for the liability portion and four witnesses which are exclusively damages (Sidra Corbin, Verenice Dutcher, Jose Gonzalez, Ena Luna). Of the 17 liability witnesses, four will also testify regarding damages (Elida, Julio and Michelle Cardoza and Det. Jason Estrada). Of the four witnesses identified by the Plaintiffs which are exclusively damages, Plaintiff does not intend to call all four. The incident and Plaintiffs damages are interconnected in an inseverable way. The jury will be able see and hear the nature and extent of Plaintiffs damages when they testify in the liability portion of the trial as they recount the events leading up to the death of their loved one. There is

no way to sever the events from the loss that resulted as both Plaintiffs have NIED claims which will require the Plaintiffs to each recount the events each time they testify. Defendant also fails to establish undue prejudice warranting bifurcation under Code of Civil Procedure § 1048(b). Courts have consistently held that prejudicial is not synonymous with damaging. (People v. Doolin (2009) 45 Cal.4th 390, 439; Rufo v. Simpson (2001) 86 Cal.App.4th 573, 597.)

In reply, Defendant argues that the issue of liability rests on the nature of Mr. Blake's job duties and the time, place, and circumstances of the shooting. Alternatively, the issue of damages involves only the magnitude of Plaintiffs' loss and the extent to which Plaintiffs' lives have been impacted by Mr. Cardoza's murder. There are, at most, four witnesses who are expected to testify on the issues of both liability and damages. Of these four witnesses identified by Plaintiffs (Elida Cardoza, Julio Cardoza, Michelle Cardoza, and Detective Jason Estrada), two of them (Michelle Cardoza and Detective Jason Estrada) would be unable to offer testimony relevant to the question of whether Mr. Blake was acting within the scope of his employment at the time of the shooting because they were not present at the time of the incident and have no personal knowledge of Mr. Blake's employment with Defendant. Thus, Michelle Cardoza and Detective Estrada cannot offer any testimony relevant to the issue of liability, leaving at most two witnesses (Elida Cardoza and Julio Cardoza) who may offer testimony relevant to both issues.

As noted by Plaintiff, who carries the burden at trial, the parties have identified a total of 21 witnesses: 17 witnesses for the liability portion and four witnesses which are exclusively damages (Sidra Corbin, Verence Dutcher, Jose Gonzalez, Ena Luna). Of the 17 liability witnesses, four will also testify regarding damages (Elida, Julio and Michelle Cardoza and Det. Jason Estrada). Of the four witnesses identified by the Plaintiffs which are exclusively damages, Plaintiff does not intend to call all four. The incident and Plaintiffs damages are interconnected. Here, the Court finds that the Plaintiff's argument is well-taken and exercises its discretion to not bifurcate the trial.

Conclusion

Based on the foregoing, Defendant City of Compton's motion to bifurcate is DENIED.